



March 14, 2025

To: Faisal D'Souza, NCO
Office of Science and Technology Policy, Executive Office of the President
2415 Eisenhower Avenue, Alexandria, VA 22314

Re: Request for Information (RFI) on the Development of an Artificial Intelligence (AI) Action Plan ("Plan")

About The Future of Free Speech

The Future of Free Speech is an independent, nonpartisan think tank located at Vanderbilt University.¹ At The Future of Free Speech, we believe that a robust and resilient culture of free speech must be the foundation for the future of any free, democratic society. Even as rapid technological change brings new challenges and threats, free speech must continue to serve as an essential ideal and a fundamental right for all people, regardless of race, ethnicity, religion, nationality, sexual orientation, gender, or social standing.

I. Introduction

The AI Plan must ensure that the First Amendment is a key tenet of AI policy. A commitment to the First Amendment requires the government to avoid censorship and jawboning, to address harms with the least restrictive means, and to avoid preemptively regulating perceived risks. Public institutions should avoid favoring specific viewpoints or content. The Plan should consider the role of open-source AI models in fostering innovation, increasing transparency, and reducing the risk of censorship.

Protecting the First Amendment and promoting a free speech culture are essential in every aspect of AI. Free speech constitutes the bedrock of the American political and social system and is an indispensable tool for promoting innovation and truth. This memorandum focuses on generative AI,² as this is the area where our organization has developed its expertise.

II. Address Harms with Least Restrictive Means

Regulation of AI-generated content should be narrowly tailored to address specific and real harms – such as Child Sexual Abuse Material (CSAM), Non-Consensual Intimate Image (NCII), fraud, and extortion – without infringing on protected speech. Any restrictions should carefully consider the First Amendment, especially the limitations it imposes on viewpoint and content-based discrimination.

The government should leverage existing laws to regulate serious harms and implement complementary legislation only when necessary if there are clear gaps or unclear standards. The

¹ "About," The Future of Free Speech, March 5, 2025, <https://futurefreespeech.org/about/>.

² *Generative AI* "is an AI technology that can create new, varying types of content, from text to imagery, to audio and synthetic data." See Public-Private Exchange Program, *Impact of Artificial Intelligence on Criminal and Illicit Activities*, Department of Homeland Security, 2024, 9, https://www.dhs.gov/sites/default/files/2024-10/24_0927_ia_aep-impact-ai-on-criminal-and-illicit-activities.pdf.



harms of AI-generated CSAM and NCII seem serious and significant; however, federal regulation must narrowly target these abuses in accordance with existing laws and without threatening protected speech as an unintended side effect.

We are seeing a rise in well-intentioned but overbroad regulation targeting generative AI content. Mandating broad notice-and-takedown systems can cause a chilling effect, as companies increasingly restrict protected content to avoid penalties.

- For example, the Senate passed the TAKE IT DOWN Act, which would criminalize NCII, including deepfakes, and mandate that social media remove such content within 48 hours. While some advocates for abuse victims praised the move, others and digital rights groups warn that the mandated notice-and-takedown system is overbroad and threatens lawful speech.
- The Center for Democracy and Technology argues that the bill “will undoubtedly have a censorious impact on users’ free expression” since attempts to comply could result in the removal of satire, journalism, and other protected content.³ Moreover, a statement by the Electronic Frontier Foundation contends that “TAKE IT DOWN contains none of those minimal speech protections and essentially greenlights misuse of its takedown regime.”⁴

The AI Action Plan should be cautious of broad risk-based provisions for AI. The government should avoid broad requirements to mitigate systemic risks, as the ones included in the European Union AI Act, which would undoubtedly lead to increased speech restrictions by incentivizing over-removal.⁵

III. Avoid Preemptively Regulating Perceived Risks

The AI Action Plan should avoid preemptively regulating ill-defined, perceived risks of generative AI, including the impact of deepfakes on elections. Over the last several years, there has been a rise in legislation and media focusing on the potential risks of AI-generated deepfakes and misinformation on elections. However, leading research has shown that generative AI misinformation and deepfakes have not had a meaningful impact in the U.S. and European elections.

- In a 2024 report, Princeton researchers analyzed every instance of AI use in elections collected by the WIRED AI Elections Project⁶ and found that “(1) half of AI use isn't deceptive, (2) deceptive content produced using AI is nevertheless cheap to replicate without AI, and (3) focusing on the demand for misinformation rather than the supply is a

³ “Re: Concerns Regarding the TAKE IT DOWN Act.” Center for Democracy and Technology, February 12, 2025. https://cdt.org/wp-content/uploads/2025/02/TAKE-IT-DOWN-Sign-On-Letter_21225.pdf.

⁴ Joe Mullin, “The TAKE IT DOWN Act: A Flawed Attempt to Protect Victims That Will Lead to Censorship,” Electronic Frontier Foundation, February 11, 2025, <https://www.eff.org/deeplinks/2025/02/take-it-down-act-flawed-attempt-protect-victims-will-lead-censorship>.

⁵ Jordi Calvet-Bademunt, “Safeguarding Freedom of Expression in the AI Era,” Tech Policy Press, November 4, 2024, <https://www.techpolicy.press/safeguarding-freedom-of-expression-in-the-ai-era/>.

⁶ Vittoria Elliott, “The Wired AI Elections Project,” WIRED, May 30, 2024, <https://www.wired.com/story/generative-ai-global-elections/>.



much more effective way to diagnose problems and identify interventions.”⁷ Overall, stating that to their knowledge, “in every country that held elections in 2024 so far, AI misinformation had much less impact than feared.”⁸

- The Centre for Emerging Technology and Security (CETaS), at The Alan Turing Institute, found that “[a]s with other recent elections, there is no evidence that AI-enabled disinformation or deepfakes meaningfully impacted UK or European election results. This is because most exposure was concentrated among a minority of users with political beliefs already aligned to the ideological narratives embedded within such content.”⁹
- Regarding US elections, CETaS found that “[t]here is a lack of evidence that AI-enabled disinformation has had a measurable impact on the 2024 US presidential election results [...] Despite this, deceptive AI-generated content did shape US election discourse by amplifying other forms of disinformation and inflaming political debates.”¹⁰

Regulating election-related deepfakes should require substantial evidence of impact, which we have yet to see, and be carefully tailored. The U.S. has seen an influx of legislation regulating election-related manipulated media. However, “some bills define ‘deepfake’ so broadly as to encompass content made or edited without the use of AI or content that doesn’t depict an identifiable person.”¹¹ This broad language restricts protected speech under the First Amendment. Preemptively trying to address these elections concerns can violate the First Amendment’s protection of satire, political commentary, and parody.¹² It is important to recognize the benefits some satirical content can provide to political discourse.

- The Cato Institute has stated that “To protect Americans’ right to free expression, policymakers should not enact precautionary regulations that stifle the development of AI without clear proof of their risk of harm. Furthermore, policymakers should reject efforts to control the ethics and norms around AI-powered expression. Instead, they should favor a robust market of AI tools that can serve as many users and perspectives as possible.”¹³

To address the confusion over whether AI-generated content is real and concern that this will damage trust in online sources, it is important that public officials and institutions strengthen

⁷ Sayash Kapoor and Arvind Narayanan, “We Looked at 78 Election Deepfakes. Political Misinformation Is Not an AI Problem,” Knight First Amendment Institute, December 13, 2024, <https://knightcolumbia.org/blog/we-looked-at-78-election-deepfakes-political-misinformation-is-not-an-ai-problem>.

⁸ Ibid.

⁹ Sam Stockwell, “AI-Enabled Influence Operations: Threat Analysis of the 2024 UK and European Elections,” Centre for Emerging Technology and Security, September 19, 2024, <https://cetas.turing.ac.uk/publications/ai-enabled-influence-operations-threat-analysis-2024-uk-and-european-elections>.

¹⁰ Sam Stockwell et al., “AI-Enabled Influence Operations: Safeguarding Future Elections,” Centre for Emerging Technology and Security, The Alan Turing Institute. November 13, 2024, <https://cetas.turing.ac.uk/publications/ai-enabled-influence-operations-safeguarding-future-elections>.

¹¹ “Deepfakes, Democracy, and the Perils of Regulating New Communications Technologies,” The Foundation for Individual Rights and Expression, October 11, 2024, <https://www.thefire.org/research-learn/deepfakes-democracy-and-perils-regulating-new-communications-technologies>.

¹² Ibid.

¹³ David Inserra, “Artificial Intelligence Regulation Threatens Free Expression,” Cato Institute, July 16, 2024, <https://www.cato.org/briefing-paper/artificial-intelligence-regulation-threatens-free-expression>.



“norms against falsely representing content as AI-generated.”¹⁴ This norm seeks to address the liar’s dividend—a dynamic in which people use false claims of deepfakes to avoid accountability in the face of public scrutiny.¹⁵

IV. Avoid Censorship and Jawboning

Government intervention in AI governance should avoid broad and preemptive censorship in seeking to define “neutrality” or overreaching into these content policies of generative AI systems. Additionally, transparency in government requests and communications with AI companies when it comes to their speech policies and product decisions will greatly contribute to this policy goal. A commitment to the First Amendment requires government to avoid censorship and jawboning by pressuring private companies to change their content practices.¹⁶

V. Foster Innovation Through Open-Source Models

The AI Action Plan should consider the role that open-source models may have on fostering innovation, increasing transparency, and reducing the risk of censorship. One of the key threats to free speech in AI governance is the concentration of AI development in a few large corporations, which have the power to dictate what types of content their models can and cannot generate.

Open-source models provide a counterbalance by enabling decentralized AI development, which allows for a broader range of viewpoints, reduced censorship risk, and greater public participation in AI governance. This allows independent developers and researchers to deploy models with diverse speech norms. Open-source models increase resilience against governmental and corporate pressure to censor certain viewpoints or enforce broad content removal policies.

Open-source models benefit AI competition, innovation, and research. This broader participation leads to downstream effects of having a diversity of free expression, viewpoints, and norms.

- According to the National Telecommunications and Information Administration (NTIA)’s Dual-Use Foundation Models With Widely Available Model Weight Report, “[o]pen models can help: (i) businesses across a range of industries integrate AI into their services and (ii) lower the barrier to entry for non-incumbents to innovate downstream AI applications.”¹⁷ Additionally, “[w]idely available model weights allow actors without

¹⁴ Josh A. Goldstein and Andrew Lohn, “Deepfakes, Elections, and Shrinking the Liar’s Dividend,” Brennan Center for Justice, January 23, 2024, <https://www.brennancenter.org/our-work/research-reports/deepfakes-elections-and-shrinking-liars-dividend>.

¹⁵ Robert Chesney and Danielle Keats Citron, “Deep Fakes: A Looming Challenge for Privacy, Democracy, and National Security,” *California Law Review* 107 (December 2019), <https://doi.org/https://www.californialawreview.org/print/deep-fakes-a-looming-challenge-for-privacy-democracy-and-national-security>.

¹⁶ Matt Perault, “The FBI Leads the Way on Jawboning Governance,” *Lawfare*, September 3, 2024, <https://www.lawfaremedia.org/article/the-fbi-leads-the-way-on-jawboning-governance>.

¹⁷ “Dual-Use Foundation Models With Widely Available Model Weights Report,” National Telecommunications and Information Administration, July 30, 2024, <https://www.ntia.gov/programs-and-initiatives/artificial-intelligence/open-model-weights-report/risks-benefits-of-dual-use-foundation-models-with-widely-available-model-weights/competition-innovation-research>.



access to the resources needed to train large models, such as non-profits and academics, to contribute more effectively to AI research and development.”¹⁸

Open-source models increase transparency, which reduces the risk of censorship from the concentration of power in the AI industry and improves researchers’ access to information.

- The Foundation Model Transparency Index¹⁹ analyzed transparency indicators across prominent AI companies and “found that open-source developers score 5.5 points higher than the median closed-source developer. This difference is most visible in the upstream domain, where open-source developers provide more information about how their models were trained and developed. However, since open-source platforms have less control over how their models are deployed, they provide less information on downstream impacts compared to closed-source models.”²⁰

VI. Key Takeaways

1. Regulation of AI-generated content should be narrowly tailored to address specific and real harms. The AI Action Plan’s Agenda should address that regulation of real risks must be done carefully and respect the First Amendment. The U.S. should be careful about adopting broad risk-based obligations for AI systems.
2. The AI Action Plan should avoid preemptively regulating ill-defined, perceived risks of generative AI, including the impact of deepfakes on elections.
3. The Administration should not jawbone AI companies into changing their content moderation policies.
4. The AI Action Plan should consider the role that open-source and open-weight AI models may have on fostering innovation, increasing transparency, and reducing the risk of censorship.

¹⁸ Ibid.

¹⁹ Rishi Bommasani et al., “The Foundation Model Transparency Index v1.1,” Center for Research on Foundation Models, May 2024, <https://crfm.stanford.edu/fmti/paper.pdf>.

²⁰ Prithvi Iyer, “The Foundation Model Transparency Index: What Changed in 6 Months?,” Tech Policy Press, May 22, 2024, <https://www.techpolicy.press/the-foundation-model-transparency-index-what-changed-in-6-months/>.



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